



DEPARTMENT OF AGRICULTURE

State Board of Stock Inspection Commissioners

RULES PERTAINING TO INSPECTION OF LIVESTOCK SOLD AS ANIMAL SHARES

8 CCR 1205-7

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Part 1. Definitions

- 1.1. "Act" means the Ranch to Plate Act, § 25-4-1617, C.R.S.
- 1.2. "Animal" or "livestock" means cattle and calves.
- 1.3. "Animal share" means an ownership interest of at least one percent in the meat of a live animal.
- 1.4. "Board" means the Colorado State Board of Stock Inspection Commissioners.
- 1.5. "Brand inspector" means a livestock inspector authorized by the Board and employed by the Department to inspect livestock prior to a change of ownership.
- 1.6. "Department" means the Colorado Department of Agriculture.
- 1.7. "Packing house" or "locker plant" means a person, association, firm, or corporation carrying on the trade or business of slaughtering livestock for compensation or profit under a license issued by the State of Colorado.

Part 2. Inspection of Livestock Sold as Animal Shares/Fees

- 2.1. When performing an inspection of livestock sold as animal shares in accordance with the Act, brand inspectors will inspect the livestock only once immediately prior to slaughter notwithstanding that shares in the animal's meat will be sold to multiple owners.
- 2.2. When performing such inspections, brand inspectors will collect the fees set forth in 8 CCR 1205-6 (State Board of Stock Inspection Fees), including the minimum fee and the per head inspection fee.

Part 3. Statement of Basis, Specific Statutory Authority and Purpose

- 3.1. Adopted September 20, 2022 - Effective November 15, 2022

Specific Statutory Authority

These rules are adopted pursuant to § 35-53-101 (3) (b), C.R.S., § 25-4-1617, C.R.S., and SB 21-079 pertaining to brand inspection of livestock sold as animal shares

Purpose

The purpose of these rules is to establish procedures for brand inspection of livestock sold as animal shares.

Factual and Policy Issues

Following the 2021 legislative session, Governor Polis signed into law the Ranch to Plate Act. Section 1 of the Act amends Colorado's Food Protection Act by authorizing the sale of shares in the meat of certain animals bound for a packing house or locker plant without licensure, regulation or inspection by a public health agency, subject to a number of limitations set forth in the Act. Section 2 of the Act deals with brand inspections to avoid a possible interpretation under current statutes and regulations that the sale of animal shares constitutes multiple changes of ownership in the same animal, requiring multiple brand inspections.

Editor's Notes

History

New rule eff. 11/15/2022.